

Supreme Court of Nova Scotia
(Family Division)

Between: [copy standard heading]

[name]

Applicant

and

[name]

Respondent

Notice of Secure-Treatment Application

TAKE NOTICE that the Applicant will make an application to the Supreme Court of Nova Scotia (Family Division), located at [address] on [date], 20 , at [a.m./p.m.], or so soon thereafter as the application can be heard, for

1. A declaration pursuant to section 56 of the *Children and Family Services Act* that
 - (a) the child, [full name, birthdate] (“the child”), is suffering from an emotional or behavioural disorder, and
 - (b) it is necessary to confine the child in order to remedy or alleviate the disorder; and
2. An order that,
 - (a) Pursuant to section 56 of the *Children and Family Services Act*, that the applicant is authorized to do the following with respect to the child [full name and date of birth]:
 - (i) admit the child to a secure-treatment facility, in particular [*Wood Street Centre Secure Treatment, 225 Wood Street, Truro, Nova Scotia*/[name of other secure-treatment facility]] (“the secure-treatment facility”),
 - (ii) detain the child at the secure-treatment facility for the purpose of diagnostic and treatment services in accordance with the plan of care determined by the applicant; and
 - (iii) discharge the child from the secure-treatment facility during the currency of this Order or on its expiration, in accordance with a discharge plan determined by the applicant; and

- (b) Pursuant to section 59 of the *Children and Family Services Act*, grant authority to a peace officer, representative or person designated by the applicant in accordance with the regulations made under the Act, to apprehend, detain, and convey the child [full name and date of birth] to [Wood Street Centre Secure Treatment located at 225 Wood Street, Truro NS/[name of other secure-treatment facility]].

AND TAKE NOTICE THAT, pursuant to section 56 of the *Children and Family Services Act*, the Order sought, if granted, will be for a period of no more than [length of order] days [expiration date and time] unless one of the following events occurs first:

- (a) the Order is varied or terminated on the hearing of an Application for Review pursuant to section 57 of the *Children and Family Services Act*;
- (b) the Order is renewed upon the hearing of an Application for Renewal pursuant to section 56(4) of the *Children and Family Services Act*; or
- (c) the child is discharged from the secure-treatment facility by the applicant, in accordance with a discharge plan determined by the applicant.

AND TAKE NOTICE that, as the child who is the subject of this Application, you have rights, including the following:

- (a) to be informed by means of the Affidavit of [name], sworn [date], of the reasons why you have been detained at a secure-treatment facility and may be detained further as a result of this Application;
- (b) to retain and instruct a lawyer without delay, and a lawyer will be made available to you through the office of the Nova Scotia Legal Aid Commission, located at 14 Court Street, Suite 202, Truro, Nova Scotia, telephone: (902) 893-5920;
- (c) to have the validity of your detention decided at a hearing to be held before a judge of Supreme Court of Nova Scotia (Family Division), at which evidence will be considered, including the above-noted Affidavit and any further Affidavit evidence that may be filed by you or your lawyer; and
- (d) to be released at the conclusion of the above-noted hearing before a judge of the Supreme Court of Nova Scotia (Family Division) if the judge determines that the detention is not lawful.

AND TAKE NOTICE that, if the Order sought by the applicant is granted, you then have the following additional rights:

- (a) to hear the reasons for the decision of the judge, in accordance with section 58(1) of the *Children and Family Services Act*;

- (b) to appeal the decision to the Nova Scotia Court of Appeal within 25 days of the Order, in accordance with section 49 of the *Children and Family Services Act*;
- (c) to make application on one (1) occasion during the time period of the Order, or more often with leave of the court, for a review of the Order, to confirm, vary or terminate the Order in accordance with section 57 of the *Children and Family Services Act*; and
- (d) to request in writing that, pursuant to section 60 of the *Children and Family Services Act*, the person in charge of the secure-treatment facility grant you a leave of absence from the secure-treatment facility to attend legal proceedings or for medical, humanitarian or rehabilitative reasons, on any terms and conditions the person in charge considers necessary.

AND TAKE NOTICE that if you do not attend, the hearing may proceed in your absence.

DATED at , Nova Scotia, [date], 20 .

Counsel for the Applicant,
[insert name, address and telephone/fax number]

To: The Supreme Court of Nova Scotia (Family Division)
And to: The Respondent,
And to: Nova Scotia Legal Aid

TAKE NOTICE: Sharing identifying information, including copies of documents, from this proceeding verbally, in writing or through the internet, including Facebook, Snapchat, Instagram, or any other social media, is an offence pursuant to s. 94(1) of the Children and Family Services Act, punishable by a fine of up to \$10,000 and imprisonment for 2 years.